BILTRANS SERVICES (PRIVATE) LIMITED
versus
ZVIMBA RURAL DISTRICT COUNCIL

HIGHCOURT OF ZIMBABWE
**TAKUVA AND CHIKOWERO JJ**
HARARE; 5 and 16 March 2026

**Civil Appeal**

*R Mabwe,* for the appellant
*B Mahuni with N M Chishumo,* for the respondent

**CHIKOWERO J:**

[1] This is an appeal from the judgment of the Magistrates Court (the Court below) ordering the appellant to pay the operational licence fees in the sum of US$13371.50 to the respondent, plus interest thereon and costs of suit.

[2] The operational licence fees were also described as council levies. The summons as read with the particulars of the claim alleged that the claim was made in terms of the Rural District Councils Act [*Chapter 29:13*] as read with the Shop Licences Act [*Chapter 14:17*]. Throughout the trial the specific provisions of these two statutes on which reliance was placed as authorising the respondent, a local authority, to levy operational licence fees on the goods transport business carried on by the appellant was not disclosed.

[3] The appellant is a private limited company duly incorporated in terms of the laws of this country.

[4] The respondent called a single witness, the Finance Director. Instead of giving such evidence as would point to the particular provisions of the statutes relied upon in the pleadings, this witness brought a new dimension to the case. He said the respondent's claim was based on the Constitution of this country. He added that the claim fell under property tax. We pause to record that we do not say that the witness was necessarily expected to cite the two statutes under

which the claim was founded. All we say is that his evidence should have provided the factual basis for the claim. Since the respondent was legally represented at the trial, it would then have been the duty of counsel, in closing submissions, to refer the lower court to the particular legislative provisions.

[5] But this we underline. The evidence led by the respondent did not speak to the claim set out in the summons as read with the particulars of claim.

[6] Nothing turns on the first and second grounds of appeal. They read:

> "1.The court *a quo* misdirected itself and went on a frolic of its own by finding that the Constitution of Zimbabwe is the applicable law in this matter when the court *a quo* made a specific finding that the respondent failed to specify the specific section of the law relied upon.
>
> 2. The court *a quo* misdirected itself by finding that the Constitution of Zimbabwe is applicable when it was not specifically pleaded by the respondent."

It is true that the lower court quoted the provisions of s 276(1) of the Constitution. But we agree with Ms Mahuni that such reference was not the basis for its decision. The reference to the Constitution was made in passing. The two grounds of appeal merit no further consideration.

[7] A determination of the third ground of appeal disposes of this appeal. That ground reads:

> "3. The court *a quo* erred at law in its interpretation of the Shop Licences Act by finding that the respondent who operates under an operating licence issued under the Road Motor Transportation Act is liable when s 3 as read with s (1)(c) of the First Schedule to the Shop Licences Act [*Chapter 14:17*] exempts public service vehicles and contract cars as defined in the Road Motor Transportation Act [*Chapter 13:15*]."

[8] It was common cause at the trial that the appellant, a private limited company, was in the business of "commercial haulage operations for profit." The lower court found that the appellant was not exempted from paying operating licence fees under the Shop Licences Act because it was "a private entity company engaged in commercial haulage operations for profit and has not shown that it operates public service vehicles." What this means is that it is the character of the appellant (a private limited company) in addition to the fact that it was operating its goods transport vehicles business, that is for profit, that informed the lower court's decision that it was not operating public service vehicles.

[9] Section 3 of the Shop Licences Act falls under Part II of the Act. The material portion thereof reads:

> "PART II
>
> CONTROL OF TRADES AND BUSINESS
>
> 3. Application of Act
>
> (1) Nothing in this Act shall apply to the trades or businesses specified in the First Schedule.
>
> (2) The Minister may subject to subsections (3) and (4), by notice in a Statutory Instrument, amend the First Schedule by altering therein, adding thereto or removing therefrom any trade or business."

[10] For our purposes, the First Schedule reads:

> "FIRST SCHEDULE (Section 3)
>
> TRADES OR BUSINESSES TO WHICH ACT DOES NOT APPLY
>
> 1.The letting for hire of –
>
> (a)…
>
> (b)…
>
> (c) public service vehicles and contract cars as defined in the Road Motor Transportation Act [*Chapter 13:15*]"

[11] The Road Motor Transportation Act does not itself define the phrase "public service vehicles and contract cars."

[12] However, s 52 of the Road Motor Transportation Act provides that:

> "(1) The Minister may make regulations providing for all matters which by this Act are required or permitted to be prescribed or which, in his opinion, are necessary or convenient to be prescribed in order to carry out or give effect to this Act."

[13] Acting in terms of s 52 of the Road Motor Transportation Act, the Minister responsible for transport promulgated the Road Motor Transportation (Public Service Vehicles), Regulations, 1998, Statutory Instrument 134 of 1998.

[14] Section 2 of the said Regulations contains this definition:

> "public service vehicle' means a goods vehicle or a passenger service vehicle."

[15] The appellant's vehicles were employed by it in the commercial haulage business. Those vehicles were, in the language of the Regulations "goods vehicles." They were therefore public service vehicles. That business is exempt from the application of the provisions of the Shop Licences Act. The reason would be that the business is already covered under the Road Motor Transportation Act, which has its own operating licence fee requirements. Whether the appellant held an operating licence for its goods transport business under the Road Motor Transportation Act for the period in question would have been an issue of compliance with the provisions of that Statute. It could not be the reason for condemning it to pay operating licence fees under the Shop Licences Act. This in essence was the appellant's plea. It ought to have been upheld.

[16] The appeal is meritorious.

[17] In the result, IT IS ORDERED THAT:

1. The appeal is allowed with costs.

2. The judgment of the Magistrates Court is set aside. It is substituted with the following:

"1.The plaintiff's claim is dismissed.

2. The plaintiff shall pay the defendant's costs of suit."

**CHIKOWERO J:…….**

**TAKUVA J:……..I agree**

*Chirorwe and Partners*, appellant's legal practitioners
*Muvingi and Mugadza*, respondent's legal practitioners